

25NNCV05104 25NNCV05104

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Case Number: 25NNCV05104 Hearing Date: July 9, 2026 Dept: T

Esteban

Tellez vs. Michael Luu Sun, et al.

Defendants'

Motion To Compel Initial Discovery Responses and Deem Requests For Admissions

Admitted

Moving Party: Defendants Quyen Du

Minh Ha, Tuyen Ha, and Thy Ha

Responding Party: Unopposed

Tentative Ruling: Grant

BACKGROUND

This is a strict liability, premises liability, and negligence action arising from an alleged dog bite incident on June 14, 2025, at 2739 Muscatel Avenue, Rosemead, California 91770.

On

March 19, 2026, Defendants Quyen

Du Minh Ha ("Quyen"), Tuyen Ha and Thy Ha ("Defendants") served Plaintiff

Estevan Tellez ("Plaintiff")

with a

first set of form interrogatories. That

same day, Defendant Quyen Du Minh Ha served Plaintiff with his first sets of special interrogatories, requests for production, and requests for admission.

On June 1, 2026, Defendants filed a combined motion to compel initial responses to their propounded discovery and to deem admitted the first set of requests for admissions.

No opposition was filed. On July 1, 2026, Defendants filed a notice of non-opposition in the form of a reply brief.

MOVING

PARTY POSITION

Defendants

argue that because Plaintiff waived all objections failing to timely serve his verified responses to their propounded discovery, the Court should compel verified responses without objections to the first sets of form interrogatories, special interrogatories, and production requests and deem admitted the truth of the matters specific in Quyen's admission requests.

Defendants

also seek monetary sanctions in the amount of \$2,640.00 against Plaintiff and his counsel, jointly and severally.

OPPOSITION

No opposition was filed.

REPLY

Defendants notified the Court of

Plaintiff's non-opposition to the motions as of the filing of the reply brief and Plaintiff's continued failure to properly respond to the propounded discovery.

ANALYSIS

I.

Legal

Standard

A. Compel

Initial Responses to Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses. (Code Civ. Proc. § 2030.290, subd. (b).) Failure to timely respond waives all objections, including privilege and work product, unless “[t]he party has subsequently served a response that is in substantial compliance” and “[t]he party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc. § 2030.290, subds. (a)(1), (a)(2).)

The statute contains no time limit for a motion to compel where no responses have been served, and no meet and confer is required when a party does not respond to discovery requests. All that must be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)

If a motion to compel responses is filed, the Court shall impose a monetary sanction against the losing party “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c).) Further, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

B. Compel Initial Responses to Requests for Production

Under Code of Civil Procedure section 2031.300, if a party fails to serve a timely response to a demand for inspection, the party making the demand may move for an order compelling response to the demand. (Code Civ. Pro § 2031.300, subd. (b).) The party who fails to serve a timely response to a demand for inspection waives any objection to the demand unless the court finds that the party has subsequently

served a response that is in substantial compliance or party's failure was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. § 2031.30, subds. (a)(1)-(2).)

Courts shall impose a monetary sanction against any party who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection unless the party acted with substantial justification or other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2031.300, subd. (c).)

C. Deem Admitted Requests for Admission

Where there has been no timely response to a request for admission under Code of Civil Procedure section 2033.010, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction. (Code of Civ. Proc. § 2033.280, subd. (b).) The party who failed to respond waives any objections to the demand, unless the court grants that party relief from the waiver, upon a showing that the party (1) has subsequently served a substantially compliant response, and (2) that the party's failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code of Civ. Proc. § 2033.280, subds. (a)(1)-(2).) The court "shall" grant a motion to deem admitted requests for admissions, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code of Civ. Proc. § 2033.280, subd. (c).)

Where a party fails to provide a timely response to requests for admission, "[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc. § 2033.280, subd. (c).)

II. Discussion

Per the declaration of Defendant's counsel Robert W. Kane, Plaintiff served untimely verified responses to his

first sets of form interrogatories, special interrogatories, requests for production, and requests for admission on May 13, 2026. (Kane Decl. ¶ 9.) However, none of Plaintiff's responses corresponded with the underlying discovery that was propounded by Defendant on March 19, 2026, given the apparent numerical and substantive discrepancies between Plaintiff's responses and the underlying discovery to which each response was directed. (Compare Kane Decl. ¶ 4, Exh. B, and id. ¶ 9, Exh. F; see id. ¶¶ 10-13.) In addition, each of the responses are signed and dated by Plaintiff's counsel as of March 10, 2026, and the verifications for each of the responses are signed and dated by Plaintiff as of March 11, 2026, despite the underlying discovery not having yet been served, further indicating their inadequacy. (See id. ¶ 9, Exhs. F and G.) Accordingly, given these facially apparent deficiencies in Plaintiff's responses, the Court finds that Plaintiff failed to provide timely, code-compliant responses to the propounded discovery under the applicable discovery statutes.

Thus, as service of the underlying discovery was properly effectuated on March 19, 2026, and as Plaintiff failed to provide timely, code-compliant responses to this discovery, the Court finds that Defendants are entitled to verified responses, without objections, to Defendants' form interrogatories and Quyen's special interrogatories and production requests.

Furthermore, with respect to Quyen's request to deem admitted the truth of the matters specified in his requests for admission, as there is no evidence before the Court establishing that Plaintiff served a substantially compliant response to his admission requests before the hearing date, the Court "shall" deem them admitted. (Code Civ. Proc. § 2033.280, subd. (c); *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778 ["[I]n the event timely RFA responses are not served, the court is required to grant the propounding party's deemed admitted motion 'unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.' [Citation.]".])

Therefore, the motion is granted in its entirety.

Defendants also seek monetary sanctions in the amount of \$2,640.00 against Plaintiff and his counsel, which

defense counsel calculated by applying his \$220.00 hourly rate to 12 total hours of completed and anticipated work.

However, given the motion's lack of complexity and the noted lack of any opposition, the Court finds that a reasonable reduction in the amount of \$1,100.00 is warranted, reflecting a reduction of 5 total hours of work.

Therefore, the Court awards sanctions in the reduced amount of \$1,540.00.

However, as Defendant has combined three separate discovery motions into one filing, this order is stayed pending the Court's receipt of the required fee payments under Government Code section 70617 for unpaid fees attributable to two of these motions. (See Gov. Code § 70617, subd. (a) ["Except as provided in subdivisions (d) and (e), the uniform fee for filing a motion, application, or any other paper requiring a hearing subsequent to the first paper, is sixty dollars (\$60)."]; Gov. Code § 70617, subd. (f) ["Regardless of whether each motion or matter is heard at a single hearing or at separate hearings, the filing fees required by subdivisions (a), (c), (d), and (e) apply separately to each motion or other paper filed."].) Furthermore, Defendant are directed in the future to file separate motions for each method of discovery

RULING

Defendants'

Motion To Compel Initial Discovery Responses and Deem Requests For Admissions

Admitted is GRANTED in its entirety.

Plaintiff's responses are due no later than 20 days after Defendants pay the required filing fees and serve notice of this ruling.

Defendants'

request for monetary sanctions is GRANTED in the reduced total amount of \$1,540.00 against Plaintiff and his counsel of record,

jointly and severally.

Said monetary sanctions shall be paid to counsel for Defendants within 30 days after Defendants pay the required filing fees and serve notice of this ruling.

The

Court's order is stayed pending receipt of Defendants' unpaid filing fees in

the total amount of \$120.00.